

FEDERAL MARITIME COMMISSION

TZ SSE BUYER, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 24-08

Served: October 15, 2024

NOTICE OF FILING OF AMENDED COMPLAINT

Notice is given that an amended complaint has been filed with the Federal Maritime Commission (the “Commission”) by TZ SSE Buyer, LLC (the “Complainant”) against Orient Overseas Container Line Limited and OOCL (Europe) Limited (the “Respondents”). Complainant states that the Commission has jurisdiction over the amended complaint pursuant to 46 U.S.C. 41301 through 41309 and personal jurisdiction over the Respondents as ocean common carriers, as defined in 46 U.S.C. 40102(18), that entered into service contracts, as defined in 46 U.S.C. 40102(21), with the original complainants.

Complainant is a Delaware limited liability company with a principal place of business in Toledo, Ohio. Impact Products, LLC and Safety Zone, LLC (the “original complainants”) filed the verified complaint in this proceeding on February 7, 2024, and subsequently filed for Chapter 11 bankruptcy and sold the claims asserted in this proceeding to Complainant. The original complainants are shippers as this term is defined under 46 U.S.C. 40102(23) with offices in Ohio, Tennessee, and Connecticut, among other locations.

Complainant identifies Respondent Orient Overseas Container Line Limited as a company existing under the laws of Hong Kong with its principal place of business in Wan Chai, Hong Kong, and as a global ocean carrier that acts in the United States through its agent, OOCL (USA) Inc., a New York company with a principal place of business in South Jordan, Utah.

Complainant identifies Respondent OOCL (Europe) Limited as a company existing under the laws of the United Kingdom with a principal place of business in Suffolk, United Kingdom, and as a global ocean carrier that acts in the United States through its agent, OOCL (USA) Inc., a New York company with a principal place of business in South Jordan, Utah.

Complainant alleges that Respondents violated 46 U.S.C. 41102(c) and 41104(a)(10) and 46 CFR 545.5. Complainant alleges these violations arose from assessment of demurrage, detention, per diem, and yard storage charges during periods of time in which the charges were not just or reasonable because of circumstances outside the control of the original complainants and their agents and service providers, and from the acts or omissions of the Respondents that led to the assessment of these charges.

An answer to the amended complaint must be filed with the Commission as provided in Administrative Law Judge Mary Apostolakos Hervey's October 11, 2024, Order Granting Motion for Leave to File Second Amended Complaint. The full text of the amended complaint and this order can be found in the Commission's electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/24-08/>.

The initial decision of the presiding judge shall be issued by February 14, 2025, and the final decision of the Commission shall be issued by August 29, 2025.

David Eng
Secretary